

The University Grants Commission (Disqualification, Retirement and Conditions of Service of Members) Rules, 1956

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The University Grants Commission (Disqualification, Retirement and Conditions of Service of Members) Rules, 1956

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The University Grants Commission (Disqualification, Retirement and Conditions of Service of Members) Rules, 1956

Rule

THE-UNIVERSITY-GRANTS-COMMISSION-DISQUALIFICATION-RETIREMENT-AND-CONDITIONS-OF-SERVICE-OF-MEMBERS-RULES-1956 of 1956

Published on 1 November 1956

Commenced on 1 November 1956

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The University Grants Commission (Disqualification, Retirement and Conditions of Service of Members) Rules, 1956

Published vide Notification in the Gazette of India, 1956, Part 2, Section 3, page 1880.

1745.

S.R.O. 2607, dated the 1st November, 1956. - In exercise of the powers conferred by section 25 of the University Grants Commission Act, 1956 (

3 of 1956

), the following rules to provide for the matters mentioned in clauses (a), (b) and (c) of sub-section (2) of section 25 of

the said Act, namely :-

1.

Short title and commencement.

(1)

These rules may be called the University Grants Commission (Disqualification, Retirement and Conditions of Service of Members) Rules, 1956.

(2)

. They shall come into force on the 5th November, 1956.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Chairman" means the Chairman of the Commission;

(b)

"Commission" means the University Grants Commission established under Section 4; and

(c)

"section" means a section of the University Grants Commission Act. 1956.

3.

Procedure for retirement of members under Section 6.

(1)

Of the six persons (other than the Chairman) appointed for the first time under clause (a) and clause (c) of sub-section (2) of Section 5, three shall retire as soon as maybe, on the expiration of the third year, and for that purpose they shall be selected by lot immediately before such expiration .

(2)

If all the three persons so selected have not been appointed entirely the said clause (a) or entirely under the said clause (c), all of them shall retire on such expiration.

(3)

If all the three persons so selected have been appointed entirely under one of the said clauses, one out of them who shall not retire on such expiration shall again be selected by lot, and in such a case one out of the three persons appointed under the other of the said clauses shall be selected for retirement on such expiration by lot.

(4)

Selection by lot shall be made by the Chairman in each of the above-mentioned cases.

4.

Disqualification.

(1)

A person shall be disqualified for continuing as a member--

(a)

if he becomes of unsound mind and stands so declared by a competent court' or

(b)

if he is an undischarged insolvent.

(2)

If any member is, without permission of the Commission, absent from any four consecutive meetings of the Commission, he shall cease to be the member of the Commission.

5.

Terms and conditions of service of members.

- (i) The Chairman shall be paid as his salary a sum of Rs. 3,000 per month or such lesser sum as may be fixed in each case by the Central Government.

(ii)

The Chairman shall be paid house-rent allowance as is admissible to officers of the Central Government of the same grade :

Provided that the Chairman may be paid actual rent up to a maximum of Rs. 525 per month as the Central Government

may decide in the circumstances of each case.

(iii)

Unless there is a contract to the contrary, the Chairman shall retire on his completing the age of sixty-five years :

Provided that the Central Government may order the retirement of the Chairman earlier if for special reasons it thinks fit to do so.

(iv)

The Chairman shall not be entitled to the benefits of any Contributory Provident Fund.

(v)

[The Chairman shall be entitled to travel by the highest class of accommodation available in the train including air-conditioned accommodation and shall also have the right to reserve by requisition a first class compartment when travelling by Railway on duty. He shall also be entitled to travel by air in his discretion.

[Substituted by S.R.O. 558, dated 13th February, 1957]

NOTE. - A first class compartment for the purpose of this sub-rule means a two-berthed compartment or an air-conditioned coupe. where it is available. or a four-berthed compartment. if a two-berthed compartment or an air-conditioned coupe is not available. in the train by which the Chairman travels.]

(vi)

The Chairman while on duty outside his headquarters shall be paid daily allowance at the rate admissible to Grade I Officers of the Central Government: Provided that the Chairman may be paid daily allowance up to a maximum of Rs. 20 per day as the Central Government may decide in the circumstances of each case.

(vii)

The Chairman may sanction travel by air of any other member of the Commission in any case where he considers it necessary in the public interest.

(viii)

Subject to clause (vii), every non-official member shall be entitled to travel by the highest class of accommodation available in the train other than the air-conditioned accommodation:

Provided that such member may travel by air-conditioned accommodation in accordance with any instructions issued by the Government of India from time to time.

(ix)

Every non-official member of the Commission while on duty out-side his place of residence shall be paid daily allowance at the rate of Rs. 20 per day. If a non-official member attends any meeting at the place where his normal place of residence is situate, he shall be paid the actual cost of conveyance subject to a minimum of Rs. 10 per day.

(x)

The term of office of a member appointed under clause (a) of sub-section (2) of section 5 shall come to an end as soon as he ceases to be the Vice-Chancellor of a University.

(xi)

The term of office of a member appointed under clause (b) of sub-section (2) of section 5 shall come to an end as soon as he ceases to hold the office by virtue of which he was appointed to represent the Central Government on the Commission.

(xii)

The term of office of a member appointed under clause (c) of sub-section (2) of section 5 shall come to an end as soon as he is appointed to any post under the Central Government or any State Government or is appointed the Vice-Chancellor of any University.

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